

LAW AND MOTION TENTATIVE RULINGS
DATE: AUGUST 31, 2026 TIME: 8:30 A.M.

No. 25CV00168

STEINMUELLER v. MONSANTO COMPANY

**DEFENDANT MONSANTO COMPANY'S MOTION FOR PARTIAL SUMMARY
JUDGMENT/ADJUDICATION**

The motion is vacated. The court finds portions of plaintiff's complaint survive following *Monsanto Co. v. Durnell* (2026) __ U.S. __ [146 S. Ct. 2001] (*Durnell*) since certain allegations are not barred by *Durnell*'s holding that state tort actions are preempted by application of the Federal Insecticide, Fungicide, and Rodenticide Act (FIFRA). Because plaintiff has voluntarily dismissed one defendant (Far West Nursery), concedes that his fraud and express warranty claims should be dismissed, and since portions of his surviving claims incorporate failure to warn allegations, the court orders plaintiff to file a second amended complaint eliminating any claim related to failure to warn or labeling. Plaintiff's second amended complaint shall be filed no later than September 30, 2026. Defendant's responsive pleading shall be filed in conformance with Code of Civil Procedure section 430.10 et seq.

Plaintiff filed his first amended complaint on March 10, 2025, with six causes of action: strict liability, design defect; strict liability, failure to warn; negligence; fraud; breach of express warranties; and breach of implied warranties.² In response to defendant's motion, plaintiff conceded that his claims for fraud and breach of express warranty claims could be dismissed. Therefore, the remaining claims are strict liability, design defect; strict liability, failure to warn; negligence; and breach of implied warranties.

Defendant Monsanto Co. argues that this action may be dismissed under *Durnell* since it is a failure to warn case preempted by federal law. In *Durnell*, the issue was whether a claim could be brought against the maker of a product governed by FIFRA under the theory that the label was inadequate. FIFRA's preemption clause specifies that a "State shall not impose or continue in effect any requirements for labeling or packaging in addition to or different from those required under this subchapter." (7 U.S.C. § 136v, subd. (b).) The Court, analyzing the plain text, determined that all state law labeling requirements -- including tort actions brought under state law -- are preempted by the broad scope of the statute. (*Durnell*, 146 S.Ct. at p. 2010.) The court agrees that any claim or allegation related to labeling or failure to warn is preempted by FIFRA and barred by *Durnell*.

² Plaintiff's seventh cause of action for exemplary damages is a remedy.

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No. 26CV01095

WORKBENCH et al. v. COUNTY OF SANTA CRUZ et al.

PETITION FOR WRIT OF MANDATE

As explained below, the petition is granted.

I. BASIS OF THE WRIT

Petitioners are Workbench and Sweet Developments LLC, land developers. This action relates to a residential development project at 3500 Paul Sweet Road, Santa Cruz (project). The project proposal is a six-story multi-family residential rental building with 105 units, six of which would be affordable to extremely low-income households. The project proposes rental units of 30 studios, 60 one-bedrooms, and 15 two-bedrooms. To the west is the Oakwood Memorial Cemetery, to the north is Chaminade Resort, and to the south is the Dominican Oaks retirement complex. Petitioners contend the project has been deemed approved by operation of law because respondents County of Santa Cruz and its Planning Commission failed to approve the project by applicable deadlines.

Based on the administrative record (AR), the following dates are significant:

March 19, 2024	Preliminary project application, 55 units and 20% set aside as affordable; project acquires builder's remedy since County did not have certified housing element (AR 736-66) ³
April 22, 2024	Second preliminary application, 84 units (AR 769-789)
October 2, 2024	Formal application, 84 units (AR 855-857)
January 1, 2025	Builder's remedy amendments effective (Government Code § 65589.5, "builder's remedy 2.0")
January 30, 2025	Revised project application for 105 units under builder's remedy 2.0 (AR 858-859)
June 13, 2025	Application deemed complete (AR 1786)
June 30, 2025	New statutory CEQA exemption goes into effect (Assem. Bill No. 130 (AB 130); Public Resources Code (PRC) § 21080.66)
October 30, 2025	Petitioners contend a deadline for approval or disapproval based on tribal notification (PRC § 21080.66)

³ County's housing element was certified on April 12, 2024. (Resp. RJN Ex. B.)